

STATE OF NEW YORK

8706--A

IN SENATE

January 7, 2026

Introduced by Sen. HINCHEY -- read twice and ordered printed, and when printed to be committed to the Committee on Labor -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to requiring covered businesses to submit annual reports on the impact of artificial intelligence on hiring and the nature of artificial intelligence use

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The labor law is amended by adding a new section 201-j to
2 read as follows:

3 § 201-j. Artificial intelligence impact assessments. 1. Definition.
4 For purposes of this section, "covered business" shall mean a business
5 entity doing business in the state and: (a) employs more than one
6 hundred people; or (b) is a publicly traded entity.

7 2. Reporting requirement. On or before March first of every year, a
8 covered business shall report to the department regarding the impact of
9 artificial intelligence on its hiring and the nature of its artificial
10 intelligence use in the calendar year ending the preceding December
11 thirty-first. Such report shall include:

12 (a) Employment data, including but not limited to:

13 (i) An estimate of the number of employees displaced, or whose hours
14 have been reduced, due in full or in part to use of artificial intelli-
15 gence;

16 (ii) An estimate of the number of employees hired, or whose hours have
17 been increased, due in full or in part to use of artificial intelli-
18 gence; and

19 (iii) An estimate of the number of positions previously filled that
20 the covered business has decided not to fill due in full or in part to
21 use of artificial intelligence; and

22 (b) Information on the nature of artificial intelligence usage,
23 including but not limited to:

24 (i) Descriptions of the objectives of the use of artificial intelli-
25 gence;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (ii) Information regarding any human oversight of artificial intelli-
2 gence;

3 (iii) Information on the frequency and length of use of artificial
4 intelligence;

5 (iv) Information on any use of artificial intelligence in relation to
6 sensitive personal data, including storage and access protections
7 related to use of artificial intelligence in relation to such personal
8 data; and

9 (v) Measures in place for oversight, risk reduction, or other
10 protections related to use of artificial intelligence.

11 3. Responsibilities of the department. The department shall develop
12 standard reporting forms and processes for covered businesses to submit
13 the reports required pursuant to subdivision two of this section. The
14 department may develop additional reporting requirements related to the
15 hiring and business impacts of utilization of artificial intelligence by
16 covered businesses.

17 4. Annual report. (a) The department shall review the reports submit-
18 ted by covered businesses pursuant to subdivision two of this section
19 and shall prepare an annual report on the impact of artificial intelli-
20 gence on hiring and the nature of artificial intelligence usage in the
21 state based on the department's review of such reports submitted pursu-
22 ant to subdivision two of this section.

23 (b) The department shall submit the report required pursuant to para-
24 graph (a) of this subdivision to the governor, the temporary president
25 of the senate, the minority leader of the senate, the speaker of the
26 assembly, and the minority leader of the assembly within one hundred
27 twenty days of the covered business reporting deadline established
28 pursuant to subdivision two of this section. Such report shall be made
29 publicly available on the department's website at the same time as such
30 report is submitted to the governor and legislature.

31 (c) The report required pursuant to paragraph (a) of this subdivision
32 shall include, but not be limited to, presentation of aggregate data
33 regarding employment impacts, objectives, and implementation of artifi-
34 cial intelligence by covered businesses, including analysis of such
35 impacts by employment sector, geographic location, and business size.

36 5. Enforcement. (a) A covered business who fails to report pursuant to
37 the requirements of this section shall be subject to a civil penalty of
38 not more than five hundred dollars for each day such covered business
39 remains in violation of such reporting requirements.

40 (b) Upon notice of a violation of this section, a covered business
41 shall have ninety days to resolve such violation to the satisfaction of
42 the commissioner. If the commissioner is satisfied that the violation
43 has been cured within the ninety-day period, the commissioner shall
44 waive or reduce the applicable penalties under this subdivision.

45 § 2. This act shall take effect immediately.